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Submitter Information

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General Comment

So-called "artificial intelligence" from companies like OpenAI and its contemporaries, these large language models, are perhaps the greatest modern example of widespread copyright infringement that has ever, and will ever, exist. These models are so comically inefficient, so absurdly resource-intensive, that they literally cannot exist without theft of art. Building a model that uses only the full body of all available public-domain works in literally all of human history still would not be effective because that body of work—the incomprehensibly massive volume of human achievement that any human today can read for free—is itself "too small" a dataset for these models.

The people developing these models know this, and have from the beginning. They know that their software is so absurdly, comically inefficient—so categorically incapable of "thinking," which they will knowingly lie to you about—that the only possible way to make even the obviously broken, frequently inaccurate, and obviously just asinine product that we are seeing right now, is by doing theft. By breaking existing copyright. They know that they "have" to do this to get their demonstrably terrible idea for a piece of software to work, and so they have already done it. The reason that they have proposed this action plan is not because they wish to use copyrighted material (though they do), it is because they already have. And they are being sued by many, many different copyright holders right now for that obvious theft, and they are hoping to retroactively have legal justification for the laws they have broken.

I am a writer, if my manner of speaking did not make it obvious enough. I am a creator, an artist, and making original art is my greatest passion in life. The people at these companies loathe people like me. They hate that my creativity is something that they cannot code, cannot program, cannot sell to other people without first paying me or someone like me. They have such innumerable contempt for art and for artists that they will spend billions upon billions upon billions of dollars (of others' money, mind) to develop a product they can then market to others, all for the sake of not paying people like me to do the thing that we do. They claim to be building the future, but they know that they are not, and are too deep in it now to admit that what they have made is a failure.

Do not let them attempt to "salvage" their idea that was obviously insidious and terrible from the very beginning. Certainly, do not let them do so by giving them special permission to ignore laws and trample all over the creative people that their awful software seeks to inadequately replace.